

had been secured in England in the Bill of Rights of 1689 and carried to the original Colonies.⁶ In *United States v. Johnson*, 383 U. S. 169, 182 (1966), Mr. Justice Harlan noted:

"There is little doubt that the instigation of criminal charges against critical or disfavored legislators by the executive in a judicial forum was the chief fear prompting the long struggle for parliamentary privilege in England and, in the context of the American system of separation of powers, is the predominate thrust of the Speech or Debate Clause."

Immunity for the other two branches—long a creature of the common law—remained committed to the common law. See, e. g., *Spalding v. Vilas*, 161 U. S. 483, 498-499 (1896).

Although the development of the general concept of immunity, and the mutations which the underlying rationale has undergone in its application to various positions are not matters of immediate concern here, it is important to note, even at the outset, that one policy consideration seems to pervade the analysis: the public interest requires decisions and action to enforce laws for the protection of the public. Mr. Justice Jackson expressed this general proposition succinctly, stating "it is not a tort for government to govern." *Dalehite v. United States*, 346 U. S. 15, 57 (1953) (dissenting opinion). Public officials, whether governors, mayors or police, legislators or judges, who fail to make decisions when

⁶ Mr. Justice Frankfurter noted in *Tenney v. Brandhove*, 341 U. S., at 373: "The provision in the United States Constitution was a reflection of political principles already firmly established in the States. Three State Constitutions adopted before the Federal Constitution specifically protected the privilege." See *Coffin v. Coffin*, 4 Mass. 1, 27 (1808). See also *Kilbourn v. Thompson*, 103 U. S. 168, 202 (1881).